

4. S-PR-0010429 Ugo G Cuneo & Leonora Cuneo Rev Trust; In re the

Petition for guardian at litem compensation and attorney fees is recommended for approval as prayed.

5. S-PR-0012045 In Re the Rovianne L Brown Fam Trust

Appearance is required for hearing on petition to instruct trustee re division and distribution of trust assets.

6. S-PR-0012652 In Re the Estate of Plympton, James Timothy Jr.

It is recommended the petition for final distribution and instructions be denied, as follows.

Petitioner incorrectly calculates personal representative and attorney fees. Disposition of estate vehicles by repossession does not result in a total loss to the estate. The repossessing creditor credits each automobile indebtedness account with the proceeds of the repossession sale, resulting in either a gain or loss on sale depending on the amount of proceeds. Where repossessing creditor neither claims a deficiency amount or refunds surplus proceeds, the repossession is scheduled in an account as a no-gain / no-loss disposition for the full asset value. Personal representative and attorney fees should be recalculated after this account error is resolved.

Extraordinary attorney fees are not supported by a sufficient C.R.C. 7.702 declaration. Counsel's declaration does not include any of the showing required by C.R.C. 7.702.

The estate includes insufficient cash to pay personal representative and attorney fees as requested. Clarification or revision is needed; the court will not ordinarily award fees where there is no ready means to pay them.

Revised account is needed. Account includes two disbursements described as "mistaken" use of the estate checking account without explanation or repayment of misused funds. Account improper includes Schedule E, liabilities, as credits. Assets on hand are not liabilities of the estate; any liabilities that require disclosure are not credits but instead are listed solely on an auxiliary schedule. Prob.C. §§ 1061(a)(10) & (b), 1062(f), 1063(a) & 1063(g).

The estate is not in a condition to be closed. Three filed creditor claims (Ally Bank, Verizon, JP Morgan Chase) remain outstanding and have not be approved or rejected by personal representative. Creditors *may* but are not required to deem claims rejected where personal representative has failed to act within 30 days (Prob.C. § 9256). There is no evidence any creditor has done so. Until the claims are resolved, estate administration cannot be closed because the time to bring an action on the claims as not run. Prob.C. § 9352(a). Additionally, petitioner seeks to pay herself for unfiled and time-barred creditor

claims (see discussion, below), to the exclusion of the pending claims with no legal support for the request to favor herself over other creditors.

Petitioner's request for distribution of the estate's interest in real property is contrary to law. Petitioner is not an heir or devisee of decedent and has no right whatsoever to distribution of assets of the estate.

To the extent petitioner's request to receive estate property may be characterized as a request to approve disbursements to petitioner for creditor claims, the request fails and must be denied. Petitioner seeks repayment of \$10,000 and \$146,617.00 used to purchase estate real property with decedent, as well as \$42,916.66 used to pay off certain debts of decedent before the real property was purchased. Petitioner offers no legal or factual support whatsoever for these claims. Even if decedent were liable for repayment of these amounts (e.g., if they had been enforceable loans by petitioner), no creditor claims of any kind were filed by petitioner and any such claims are long since time-barred. Prob.C. § 9200(a); C.C.P. § 366.2. Neither the court nor personal representative may approve time-barred creditor claims. Prob.C. § 9253.

To the extent petitioner's request to receive estate property may be characterized as a request to approve disbursements to petitioner for advances to the estate, the request appears well supported in part. Post-death loan payments are reasonably characterized as advances to the estate for costs of administration / maintenance of estate assets as to decedent's 1/2 liability for the real property indebtedness. On the information provided in the petition (loan payments through December 2023), it appears the advances total \$39,828.92 (the other one-half applying only to personal representative's personal liability for 1/2 of the real property indebtedness). Petitioner does not allege whether similar monthly advances have continued since January 2026. Advances to the estate appear to be payable before creditor claims. As above, these are disbursements from the estate and not distributions. Even if the court were to approve disbursement for such reimbursable advances to the estate, petitioner has shown no legal basis to make such disbursement in kind where estate administration also requires payment of many other costs and claims.

Missing guardian ad litem or other fiduciary for minor heir Gabriel Plimpton. Petitioner proposes to eliminate all of minor's interest in the estate on unsupportable grounds, as above. Minor's rights and interests cannot be compromised without a suitable fiduciary having notice and opportunity to be heard. Petitioner has not shown that minor's parent is a guardian of the estate or other fiduciary who may appear to represent minor's interests in these proceedings.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.